

Mohammad Tasleem v. State of U.P. and others

High Court of Judicature at Allahabad · Division Bench · 23 October 2021 · Writ-C No. 6475 of 2021 · **Writ disposed; pending clause 6.5 representation to be decided in three weeks, no merits.**

HEADNOTE

The Allahabad High Court disposed of a writ against an electricity bill issued in the petitioner's father's name by directing the concerned officer to decide the pending clause 6.5 Supply Code representation within three weeks, if not already decided, strictly in accordance with law. Counsel for the licensee had no objection. The Court expressed no opinion on the billing dispute.

FACTUAL SUMMARY

Mohammad Tasleem filed a writ in the Allahabad High Court against a bill issued by the electricity board in his father's name. He claimed the family was paying bills regularly and that nothing was outstanding. He had already made a representation under clause 6.5 of the U.P. Electricity Supply Code, 2005 to respondent no. 4, which had not been decided. He asked only that the officer be directed to dispose of that representation. Counsel for respondent no. 4 did not object.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

pending billing representation

HOLDING

A writ complaining of a disputed electricity bill may be disposed of, without any opinion on merits, by directing the designated officer to decide a pending clause 6.5 Supply Code representation within a fixed time and strictly in accordance with law. ¶ 1

PRINCIPLE TAGS

clause-6.5-pending-representation-to-be-decided

The Court accepted the limited prayer and, with no objection from the licensee, directed respondent no. 4 to decide the pending clause 6.5 representation within three weeks if not already decided, strictly in accordance with law and without examining the billing dispute. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE BILL IN THE FATHER'S NAME WAS ILLEGAL OR WHETHER ANY DUES WERE OUTSTANDING

The Court expressly declined to express any opinion on the merits and left the representation to be decided strictly in accordance with law. ¶ 1